

The Indian Statistical Institute Act, 1959

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[An Act to declare the institution known as the Indian Statistical Institute having at present its registered office in Calcutta to be an institution of national importance and to provide for certain matters connected therewith.](#)

[BE it enacted by Parliament in the Tenth Year of the Republic of India as follows:-](#)

[1.](#)

[Short title and commencement.-](#)

[\(1\)](#)

[This Act may be called the Indian Statistical Institute Act, 1959.](#)

[\(2\)](#)

[It shall come into force on such date¹ as the Central Government may, by notification in the Official Gazette, appoint.](#)

[2.](#)

[Definitions.-](#)

In this Act, unless the context otherwise requires.-

(a)

"Institute" means the Indian Statistical Institute registered under the Societies Registration Act, 1860 (21 of 1860);

(b)

"memorandum" means the memorandum of association of the Institute filed with the Registrar of Joint-Stock Companies under the Societies Registration Act, 1860 (21 of 1860);

(c)

"rules and regulations" includes any rule or regulation (by whatever name called) which the Institute is competent to make in the exercise of the powers conferred on it under the Societies Registration Act, 1860 (21 of 1860), but shall not include any bye-laws or standing orders made under the rules and regulations for the conduct of its day-to-day administration.

3.
Declaration of the Indian Statistical Institute as an institution of national importance.-

Whereas the objects of the institution known as the Indian Statistical Institute are such as to make it an institution of national importance, it is hereby declared that the Indian Statistical Institute is an institution of national importance.

4.

Grant of degrees and diplomas by Institute.-

Notwithstanding anything contained in the University Grants Commission Act, 1956 (3 of 1956), or in any other law for the time being in force, the Institute may hold such examinations and grant such degrees and diplomas in [statistics, mathematics, quantitative economics, computer science and such other subjects related to statistics] as may be determined by the Institute from time to time.

5.

Grants, loans, etc., by Central Government to the Institute.-

For the purpose of enabling the Institute to discharge efficiently its functions, including research, education, training, project activities and statistical work relating to planning for national development, the Central Government may, after due appropriation made by Parliament by law in this behalf, pay to the Institute in each financial year such sums of money as that Government considers necessary by way of grant, loan or otherwise.

6.

Audit of accounts of the Institute.-

(1)

The accounts of the Institute shall be audited by auditors duly qualified to act as auditors of companies under the Companies Act, 1956 (1 of 1956), and the Institute shall appoint such auditors as the Central Government may, after consultation with the Comptroller and Auditor-General of India and the Institute, select.

(2)

The Central Government may issue such directions to the auditors in the performance of their duties as it thinks fit.

(3)

Every such auditor in the performance of his duties shall have at all reasonable times access to the registers, books of account, records and other documents of the Institute.

(4)

The auditors shall submit their report to the Institute and shall also forward a copy thereof to the Central Government for its information.

7.

Prior approval of Central Government necessary for certain action by Institute.-

Notwithstanding anything contained in the Societies Registration Act, 1860 (21 of 1860), or in the memorandum or rules and regulations, the Institute shall not, except with the previous approval of the Central Government,-

(a)

alter, extend or abridge any of the purposes for which it has been established or for which it is being used immediately before the commencement of this Act, or amalgamate itself either wholly or partially with any other institution or society;

or

(b)

alter or amend in any manner the memorandum or rules and regulations; or

(c)

sell or otherwise dispose of any property acquired by the Institute with money specifically provided for such acquisition by the Central Government: Provided that no such approval shall be necessary in the case of any such movable property or class of movable property as may be specified by the Central Government in this behalf by general or special order; or

(d)

be dissolved.

8.

Constitution of Committees by Central Government for preparing programme of work by the Institute, etc.-

(1)

The Central Government may constitute as many Committees as and when it considers necessary consisting of such number of persons as it thinks fit to appoint thereto and assign to each such Committee all or any of the following duties, namely:-

(a)

the preparation and submission to the Central Government as far as possible before the commencement of each financial year, of statements showing programmes of work agreed to be undertaken by the Institute during that year for which the Central Government may provide funds, as well as general financial estimates in respect of such work; and

(b)

the settlement on broad lines of the programme of such work.

(2)

Where the Institute does not agree to undertake any work suggested by any Committee referred to in sub-section (1), it shall give to the Central Government its reasons for not so agreeing.

9.

Review of work done, Inspection of assets, etc.-

(1)

The Central Government may constitute a Committee consisting of such number of persons as it thinks fit to appoint thereto for the purpose of-

(a)

reviewing the work done by the Institute and the progress made by it;

(b)

inspecting its buildings, equipment and other assets;

(c)

evaluating the work done by the Institute; and

(d)

advising Government generally on any matter which in the opinion of the Central Government is of importance in connection with the work of the Institute; and the Committee shall submit its reports thereon in such manner as the Central Government may direct.

(2)

Notice shall be given in every case to the Institute of the intention to cause a review, inspection or evaluation to be made, and the Institute shall be entitled to appoint a representative who shall have the right to be present and be heard at such review, inspection or evaluation.

(3)

The Central Government may address the Chairman of the Institute with reference to the result of such review, inspection or evaluation as disclosed in any report of the Committee referred to in sub-section (1), and the Chairman shall communicate to the Central Government the action, if any, taken thereon.

(4)

When the Central Government has, in pursuance of sub-section (3), addressed the Chairman of the Institute in connection with any matter, and the Chairman does not within a reasonable time take action to the satisfaction of the Central Government in respect thereof, the Central Government may, after considering any explanations furnished or representations made on behalf of the Institute, issue such directions as it considers necessary in respect of any of the matters dealt with in the report.

10.

Institute to afford facilities to Committees.-

The Institute shall be bound to afford all necessary facilities to any Committee constituted under section 8 or section 9 for the purpose of enabling it to carry out its duties.

11.

Power to issue directions to Institute.-

(1)

The Central Government may, if it is satisfied that it is necessary so to do in the public interest, issue, for reasons to be recorded and communicated to the Institute, such directions as it thinks fit to the Institute, and such directions may include directions requiring the Institute-

(a)

to amend the memorandum or to make or amend any rule or regulation within such period as may be specified in the directions;

(b)

to give priorities to the work undertaken or to be undertaken by the Institute in such manner as the Central Government may think fit to specify in this behalf.

(2)

Any directions issued under this section shall have effect, notwithstanding anything contained in any law for the time being in force or in the memorandum or rules and regulations of the Institute.

12.

Power of Central Government to assume functions of control.-

(1)

If, in the opinion of the Central Government,-

(i)

the Institute without just or reasonable cause has made default in giving effect to any direction issued under sub-section (4) of section 9 or section 11; or

(ii)

the Council of the Institute has exceeded or abused its powers in relation to the Institute or any part thereof; the Central Government may, by written order, direct the Institute within a period to be specified in the order to show cause to the satisfaction of the Central Government against the making of any appointment referred to in sub-section (2).

(2)

If, within the period fixed by any order issued under sub-section (1), cause is not shown to the satisfaction of the Central Government, the Central Government may, by order published in the Official Gazette and stating the reasons therefore, appoint one or more persons to take charge of the Institute or any part thereof for such period not exceeding two years as may be specified in the order.

(3)

Notwithstanding anything contained in any law for the time being in force or in the memorandum or rules and regulations of the Institute, on the issue of an order under sub-section (2), during the period specified in that order,-

(a)

where the order provides for any person or persons being in charge of the Institute-

(i)

all persons holding office as Members of the Council, including the Chairman, shall be deemed to have vacated their offices as such;

(ii)

the person or persons appointed under sub-section (2) to be in charge of the Institute shall exercise all the powers and perform all the duties of the Chairman or Council of the Institute, whether at a meeting or otherwise, in respect of the Institute;

(b)

where the order provides for any person or persons being in charge of any part of the Institute, the person or persons so appointed shall alone be entitled to exercise all the powers and perform all the duties of the Chairman or Council in relation to that part.

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